the sole proprietor or sole practitioner as well as to personal documents containing more intimate information about the individual's private life. *Boyd* v. *United States, supra; Couch* v. *United States,* 409 U. S. 322 (1973); *Hill* v. *Philpott,* 445 F. 2d 144 (CA7), cert. denied, 404 U. S. 991 (1971); *Stuart* v. *United States,* 416 F. 2d 459, 462 (CA5 1969). As the Court explained in *United States* v. *White, supra,* at 698, "[t]he constitutional privilege against self-incrimination . . . is designed to prevent the use of legal process to force from the lips of the accused individual the evidence necessary to convict him or to force him to produce and authenticate any personal documents or effects that might incriminate him." See also *Curcio* v. *United States,* 354 U. S. 118, 125 (1957); *Couch* v. *United States, supra,* at 330–331.

On the other hand, an equally long line of cases has established that an individual cannot rely upon the privilege to avoid producing the records of a collective entity which are in his possession in a representative capacity, even if these records might incriminate him personally. This doctrine was first announced in a series of cases dealing with corporate records. In *Wilson* v. *United States, supra,* the Court held that an officer of a corporation could not claim his privilege against compulsory self-incrimination to justify a refusal to produce the corporate books and records in response to a grand jury subpoena *duces tecum* directed to the corporation. A companion case, *Dreier* v. *United States,* 221 U. S. 394 (1911), held that the same result followed when the subpoena requiring production of the corporate books was directed to the individual corporate officer. In *Wheeler* v. *United States,* 226 U. S. 478 (1913), the Court held that no Fifth Amendment privilege could be claimed with respect to corporate records even though the corporation had previously been dissolved. And

*Grant* v. *United States,* 227 U. S. 74 (1913), applied this principle to the records of a dissolved corporation where the records were in the possession of the individual who had been the corporation's sole shareholder.

To some extent, these decisions were based upon the particular incidents of the corporate form, the Court observing that a corporation has limited powers granted to it by the State in its charter, and is subject to the retained "visitorial power" of the State to investigate its activities. See, *e. g., Wilson* v. *United States, supra,* at 382–385. But any thought that the principle formulated in these decisions was limited to corporate records was put to rest in *United States* v. *White, supra.* In *White,* we held that an officer of an unincorporated association, a labor union, could not claim his privilege against compulsory self-incrimination to justify his refusal to produce the union's records pursuant to a grand jury subpoena. *White* announced the general rule that the privilege could not be employed by an individual to avoid production of the records of an organization, which he holds in a representative capacity as custodian on behalf of the group. 322 U. S., at 699–700. Relying on *White,* we have since upheld compelled production of the records of a variety of organizations over individuals' claims of Fifth Amendment privilege. See, *e. g., United States* v. *Fleischman,* 339 U. S. 349, 357–358 (1950) (Joint Anti-Fascist Refugee Committee); *Rogers* v. *United States,* 340 U. S. 367, 371–372 (1951) (Communist Party of Denver); *McPhaul* v. *United States,* 364 U. S. 372, 380 (1960) (Civil Rights Congress). See also *Curcio* v. *United States, supra* (local labor union).

These decisions reflect the Court's consistent view that the privilege against compulsory self-incrimination should be "limited to its historic function of protecting only the natural individual from compulsory incrimination through

his own testimony or personal records." *United States* v. *White, supra,* at 701. *White* is only one of the many cases to emphasize that the Fifth Amendment privilege is a purely personal one, most recent among them being the Court's decision last Term in *Couch* v. *United States,* 409 U. S., at 327–328. Relying on this fundamental policy limiting the scope of the privilege, the Court in *White* held that "the papers and effects which the privilege protects must be the private property of the person claiming the privilege, or at least in his possession in a purely personal capacity." 322 U. S., at 699. Mr. Justice Murphy reasoned that "individuals, when acting as representatives of a collective group, cannot be said to be exercising their personal rights and duties nor to be entitled to their purely personal privileges. Rather they assume the rights, duties and privileges of the artificial entity or association of which they are agents or officers and they are bound by its obligations." *Ibid.*

Since no artificial organization may utilize the personal privilege against compulsory self-incrimination, the Court found that it follows that an individual acting in his official capacity on behalf of the organization may likewise not take advantage of his personal privilege. In view of the inescapable fact that an artificial entity can only act to produce its records through its individual officers or agents, recognition of the individual's claim of privilege with respect to the financial records of the organization would substantially undermine the unchallenged rule that the organization itself is not entitled to claim any Fifth Amendment privilege, and largely frustrate legitimate governmental regulation of such organizations. Mr. Justice Murphy put it well:

> "The scope and nature of the economic activities of incorporated and unincorporated organizations and their representatives demand that the constitu-